

		Code sections 10137 and 10139.5(a): (1) the transfer is fair and reasonable and in the best interest of Payee, taking into account the welfare and support of his dependents; (2) Payee has been advised in writing by Petitioner to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived, in writing, the opportunity to receive the advice; (3) Petitioner has complied with the notification requirements pursuant to Insurance Code section 10139.5(f)(2), Petitioner has provided Payee with a disclosure form that complies with Insurance Code section 10136, and the transfer agreement complies with Insurance Code sections 10136 and 10138; (4) the transfer does not contravene any applicable statute or the order of any court or other government authority and otherwise complies with the requirements of Insurance Code section 10134, et seq.; (5) Payee understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Insurance Code section 10136; and (6) Payee understands and does not wish to exercise his right to cancel the transfer agreement. Based on the foregoing, the petition is GRANTED. Petitioner's counsel is ordered to submit a proposed order approving the transfer consistent with the requirements of Insurance Code section 10134 et seq. Petitioner's counsel is ordered to give notice of this ruling.
3.	<i>Spruce Grove, Inc. vs. The Southern California Injury Law Group</i> 2026-01568223	Before the court is a petition to confirm contractual arbitration award filed by petitioner Spruce Grove, Inc. (Petitioner) against respondents The Southern California Injury Law Group, Christopher K. Monelt, Mia Mogavero, and Alazar Berhe (collectively, Respondents). For the reasons set forth below, the petition is GRANTED IN PART and DENIED IN PART. As an initial matter, the court declines to consider Respondents' very untimely opposition. A response to a petition to confirm an arbitration award shall be served and filed within 10 days after service of the petition. (Code Civ. Proc., § 1290.6.) Here, Respondents were served with the petition on June 5, June 12, and June 18, 2026. (ROA 10, 12, 14, 16.) A response to the petition therefore was due no later than June 28, 2026. Respondents' opposition filed on August 12, 2026, thus was untimely. No explanation is provided for the untimely filing. Additionally, no proof of service was filed showing Petitioner was served with a copy of the opposition. The court therefore declines to consider the opposition papers. (Cal. Rules Ct., rule 3.1300(d).)

		A petition to confirm a contractual arbitration award must (1) set forth the substance of or have attached a copy of the agreement to arbitrate; (2) set forth the names of the arbitrators; and (3) set forth or have attached a copy of the award and the written opinion of the arbitrators, if any. (Code Civ. Proc., §1285.4.) If a petition to confirm an arbitration award "is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.) If the award is confirmed, an enforceable judgment is entered with the same force and effect as a judgment in a civil action. (Code Civ. Proc., §1287.4.) Respondent Alazar Berhe is a former employee of Petitioner who brought multiple actions against Petitioner that were ordered to arbitration. The other three Respondents are the attorneys and law firm that represented respondent Alazar Berhe in court and in the arbitration. By this petition, Petitioner seek to confirm the arbitrator's October 3, 2025 order granting Petitioner's motion for terminating sanctions based on Respondents' conduct during the arbitration. The petition is GRANTED as to the request to confirm the arbitrator's order/award imposing terminating sanctions against respondent Alazar Berhe and dismissing all his claims against Petitioner with prejudice. Petitioner has satisfied the requirements of Code of Civil Procedure section 1285.4 by attaching a copy of the arbitration against between respondent Alazar Berhe and Petitioner, setting for the arbitrator's name (Hon. Holly Kendig (Ret.)), and attaching a copy of the arbitrator's order/award. The petition, however, is DENIED as to the monetary sanctions Petitioner seeks against respondent Alazar Berhe and it is DENIED IN ITS ENTIRETY as to the other three Respondents. Although the petition seeks to confirm the alleged award of \$22,588.92 in monetary sanctions against all Respondents, the arbitrator's October 3, 2025 order did not require Respondents to pay Petitioner \$22,588.92 as Petitioner contends. The October 3, 2025 order granted Petitioner's motion for terminating sanctions and ordered the proceedings dismissed with prejudice. (See Attachment 8c to Petition, p. 11.) Although the order discussed the prior monetary sanctions orders that were imposed against
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		Respondents as part of its statement of the underlying facts, the October 3, 2025 order itself did not award those sanctions to Petitioner. Petitioner does not even attach the prior monetary sanctions orders to its petition. Moreover, Petitioner cites no authority showing the court may properly confirm a contractual arbitration award where three of the four Respondents were not signatories to the contract containing the arbitration agreement and were not named as claimants or respondents in the arbitration proceedings. Here, only Petitioner and respondent Alazar Berhe are signatories to the arbitration agreement. (See Attachment 4b to Petition.) Perhaps there is an argument to be made the attorney Respondents who were not signatories to the arbitration agreement submitted to the arbitrator's authority by voluntarily appearing and participating in the arbitration proceeding, but no authority is cited to establish that or any other basis for making and confirming an award against these nonsignatories. Accordingly, the petition is GRANTED as to the order granting terminating sanctions against respondent Alazar Berhe and dismissing all his claims against Petitioner, but the petition is DENIED in all other respects, including with regarding to any monetary sanctions or any other relief against the remaining three Respondents. Counsel for Petitioner is ordered to give notice of this ruling.
4.	<i>First-Citizens Bank & Trust Company vs. Mana Family Holdings LLC</i> <i>2026-01573260</i>	Before the court is the unopposed motion for order to permit inspection under Civil Code section 2929.5, subdivision (d), filed by petitioner First-Citizens Bank & Trust Company (Petitioner) regarding the real property located at 2301 East Orangethorpe Avenue, Fullerton, California 92831 (Property). For the reasons set forth below, the motion is GRANTED. Petitioner has shown (1) it is a secured lender of the Property, (2) it has commenced nonjudicial foreclosure proceedings, and (3) it has been unable to enter the Property without a breach of the peace for the purpose of determining the existence, location, nature, and magnitude of any past or present release or threatened release of any hazardous substance on the Property. (See Janes Decl., ¶¶ 7-8, 14-18, 20-21; Exhs. 1-4, 9-10; Strickland Decl., ¶¶ 3-4.) Petitioner also has shown in compliance with Civil Code section 2929.5, subdivision(b), Petitioner provided the requisite twenty-four hours' notice to respondents Mana Family Holdings LLC, Veterans Towing LLC, Ahmad Mofid, Nima Mofid, Mahtab Mofid, and Mohammad Mofid to